

## CHAPTER THREE

# FORMS OF STATE AND FORMS OF GOVERNMENT

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## 1. Terminological Premise

This chapter will deal with the “form of state” and the “form of government”, i.e. two terms that correspond to the Italian terms “*Forma di Stato*” and “*Forma di Governo*”. When we use the notion form of state we are referring to the rules and principles that govern a state legal system. Put in another way the form of state defines the relationship between the State that can legitimately exercise coercive power, on one hand, and the citizens, taken individually or as a community, on the other. The notion form of government refers to the set of rules concerning the distribution of power among the branches of government or, put in a different way, the relationship between constitutional bodies i.e. those organs which are above all the others and have the same level of sovereignty and independence. An eminent scholar of Italian public law and member of the Constituent Assembly, Costantino Mortati, aptly defined the form of state as « the relationship between the holder of power and the subject of that power and therefore the various aspects of the relationship between authority and liberty ».

Two observations need to be made before examining the various forms of state. First, in the context of this notion we will also include the rules and

principles that govern the relationship between the central government and sub-national entities. This choice may be disputed, given that not all commentators agree on the fact that this relationship can be entirely comprised in the concept of the form of state. In fact some scholars argue that the relationship between the “centre and the periphery” comes under the form of government, while others consider the territorial organisation of a state to be something that effects both the relationship between the State and its citizens as well as that between the constitutional bodies.

Second, in many respects the expressions “form of state” and “form of government” are notions that specifically derive from Italian public law. In fact, in the United States and in Britain these two terms are often treated as synonyms with the term “form of government” used more frequently than the expression “form of state”. This is explained by the fact that the term “government” in English has a far wider meaning than the word “*governo*” in Italian due to the fact that while the latter normally refers to the executive power (more precisely the Council of Ministers), the former often refers to the state as a whole, hence the use of term “branch of government” to define the legislative, executive and judicial powers. What in Italian are classified as “*forme di governo*” are often referred to as “regime types” or “systems of government” in English. We can find similar conceptual linguistic difficulties in other countries too. The French use the expression “*régime politique*” rather than “*forme du gouvernement*” and although the Spanish do employ the expressions “*forma de estado*” and “*forma de gobierno*” they also use the term “*forma política*” which in many respects is a combination of the two notions: in fact Art. 1.3 of the Spanish Const. states that « *La forma política del Estado español es la Monarquía parlamentaria* » (The political form of the Spanish State is the Parliamentary Monarchy).

## 2. Forms of State and Forms of Government: Historical Aspects and Development

If we go back to the first attempts to classify forms of political power again we can see that no distinction was made between the form of state and the form of government. The ancient Greek philosopher Aristotle, for example, distinguished between a government run by one person (Monarchy), a government by the few (Aristocracy) and government by the many (Polity, *πολιτεία*). Aristotle considered these to be examples of “good” government that could however degenerate respectively into a tyranny, oligarchy and ...democracy (one must remember that Aristotle did not regard democracy favourably because he feared that government by the masses (*demos*, common people) could lead to disorder or lawlessness. Even the classifications made by Machiavelli and Montesquieu did not distinguish between the form of state and the form of government. In his best-known work, *Il Principe*, the Florentine philosopher distinguishes between Principalities and Republics,

while Montesquieu in *L'esprit des lois* talks of Republic, Monarchy and Despotism.

The dichotomy between Monarchy and Republic has long been seen as a crucial element in classifying forms of state and forms of government. The Monarchy was characterised by a King that personified the State – just think of the expression *L'État, c'est moi* disputedly attributed to the French King Louis XIV – and who claimed to have a transcendent legitimacy and was thus unrepresentative, while in a Republic the Head of State was considered one of the constitutional bodies of the State, legitimised by popular vote and therefore representative. For a long period of time the existence of a Monarch as the Head of State characterised the nature of the form of state (absolute monarchy) and the form of government (constitutional monarchy), today however with the affirmation of the republican principles and the transformation of the European monarchies into parliamentary monarchies the distinction between Monarchy and Republic has become more blurred. Today this dichotomy is incapable of distinguishing between contemporary forms of state and government. Substantially the existence of a monarchical or republican Head of State does not alter democratic forms of state or parliamentary forms of government.

For reasons of brevity the concept of democracy will not be developed further in this chapter given the fact that the democratic principles of the Republic of Italy are addressed in Chapter 1 with regard to the characteristics of the State and in Chapter 4 with regard to voting rights and electoral systems.

Turning now to the specific notion of form of state, using the diachronic method we can distinguish five main types: the feudal society (or patrimonial state), the absolute state, the liberal state, the totalitarian state and the democratic pluralistic state. In truth one cannot really talk of a form of state until we have the creation of the Nation States, which according to most historians began during the second half of the 14<sup>th</sup> Century. However, others argue that the Peace of Westphalia in 1648 – i.e. the signing of the Peace treaties of Osnabrück and Münster – is probably to be considered the watershed event, which initiated a new order in Europe with the affirmation of principles such as *cuius regio, eius religio* (the religion of the ruler will be the religion of the people).

### 2.1. *The Feudal Society*

Having said this, in order to fully understand how the form of state has developed we must briefly describe the so-called feudal society (sometimes also defined patrimonial state), which existed in Europe from the 8<sup>th</sup> Century with the beginning of the Carolingian Empire up until the 12<sup>th</sup> Century (some authors argue that the precursor was the Merovingian Empire that began in the 5<sup>th</sup> Century after the fall of the Western Roman Empire in 476).

We cannot really talk of a state *stricto sensu* because there was a total identification of the feudal lord (or the King) with the property of the land and

the power he could exercise over the peasants. This is why the feudal society is sometimes defined as patrimonial because the aim was not that of fulfilling the general interests of the people, but simply that of meeting the needs of the lord and his manor. Feudal societies were usually organised on the basis of private agreements, contracts between individuals (the feudal lords). The sole aim of the feudal society was that of protecting the land and its related possessions (including the peasants) from external attacks. Possession of land gave rise to a series of rights related to everything that was to be found on it (including the peasants). The feudal lords also had the right to administer justice and to collect taxes.

## 2.2. *The Absolute State*

Beginning in 14<sup>th</sup> Century we have the gradual passage from a feudal system to an absolute state. This transformation was determined by the progressive unification of certain territories under the power of a single monarch as occurred in England, France and Spain (Italy and Germany on the contrary will remain for several more centuries divided in Kingdoms and Principalities) and the move towards a money society.

In other words, two power shifts play a key role in the move from feudalism to an absolute state: first, the shift of power from the feudal lords to the King (and thus the stabilisation of monarchical authority) and second the shift of power from land to money. Land, the basis of power in the medieval period, lost its importance. It took centuries for this process to reach completion, but the seeds were sown with the birth of money.

One should emphasise, however, that these developments occurred in different ways and to different degrees from country to country. The economic development in England was such that many commentators and historians claim that England never really went through a period of absolutism, while the story is different when it comes to continental Europe and in particular France where there was a strong institutional system dominated by the noble classes or by the King himself.

Under absolutism, the State became more interventionist (e.g. through economic protectionism) and to a limited extent it tried to fulfil the general interests of the people and not just the needs of the lord of the manor as occurred during feudalism. Again the extent to which individual liberty was expanded depended a great deal on the individual Monarch that was in power.

With the risk of oversimplification, certainly one of the symbols of the absolute state was Louis XIV who became King at the age of five, but did not start ruling until 1661. During his reign the power of the nobles was weakened and he began to use the so-called *intendants* to enforce his will over the provinces by giving them the power to collect taxes and administer justice. France's economy became stronger thanks to the King's Minister of Finance, Jean-Baptiste Colbert, a promoter of mercantilism who improved France's manufacturing, although many of his efforts were thwarted by Louis XIV overspending on wars.

The strength of the absolute state could be seen in the large centralised bureaucracy and the ability to maintain a large standing army to expand policies at home and abroad. Moreover, the absolute state had a proper tax system and uniform taxation throughout the territory.

There were also cases of so-called “Enlightened absolutism”, often referred to in Italian public law as *stati di polizia* a term deriving from the Greek word *Polis* (πόλις) meaning city. This was a form of state in which the Monarch was positively influenced by the principles of Enlightenment. Just like the rulers of “conventional” absolute states these Monarchs were convinced that they had the right to govern by birth and therefore they were reluctant to grant constitutions, but they did recognise certain individual rights, such as freedom of speech and the right to property and they tended to foster religious tolerance. In general, the Monarchs of Enlightened absolute states ruled with the aim of improving the lives of their subjects: the famous motto that summarises this concept is “Everything for the people, nothing by the people.” Examples of Enlightened rulers were Frederick II of Prussia, Maria Theresa and her eldest son Joseph II of Austria, Leopold II Grand Duke of Tuscany.

### 2.3. *The Liberal State*

The reasons that brought about crisis of the absolute state were financial, socio-economic and political. The financial problems were caused by the ever-growing bureaucratic and military machinery, while the socio-economic changes resulted from the industrial revolution and the growing hegemony of the middle classes that thus began to push for greater political power in order to better protect their interests.

As we know this classification of the forms of state is the result of a diachronic analysis, therefore it must be stressed that the passage from the absolute to the liberal state varied significantly from country to country. In England – where as emphasised in par. 2.1. according to many commentators there was never fully-fledged absolutism – the liberal state developed quite early on following the two victories that Parliament obtained against the Stuarts. The first – the English Civil War – ended in 1649 with the beheading of Charles I, while the second – the Glorious Revolution – ended in 1688 with the overthrow of James II and his replacement in 1689 with William of Orange who jointly acceded the throne with Mary, his wife and daughter of James II. Though not without bloodshed, the passage to the liberal state was quite gradual and without great political and social traumas.

In the United States the creation of the liberal state was the logical consequence of the victorious War of Independence against Great Britain and the approval of the Constitution in 1787. American society was composed of free men and landowners who did not have to deal with a noble class. The United States was (and still is) characterised by wide recognition of individual rights (with particular regard for the right to property) and their protection under a superior law, the Constitution.

Unlike England and the United States, the move towards a liberal state in France was far more traumatic and violent. The bourgeoisie had to fight, on one hand, against the privileges of the nobility and the clergy and, on the other, against the despotic rule of the *Ancien Régime*. This of course resulted in the French Revolution of 1789 during which there was an ideological oscillation between liberalism and democratic-radicalism that were reflected in the Constitutions of 1791 and 1793.

The development of the liberal state in Germany and Italy was different from both England and the United States, on one hand, and France, on the other. Due to a weak bourgeoisie and strong aristocratic landowners the birth of the liberal state was the result of a compromise and a “top-down” revolution that resulted from the expansion respectively of Prussia and the Kingdom of Sardinia. For this reason, the liberal state in these two countries was more centralised than elsewhere.

Bearing in mind these differences we can affirm that the liberal state was characterised by a strong separation between the State and society, the prevalence of individualism and the protection of rights and freedoms. In fact, another important element is the fact that the liberal state is based on the rule of law (i.e. government authority may only be legitimately exercised in accordance with laws that are adopted through an established procedure). Finally, while absolutism was characterised by strong state intervention, the liberal state was a “minimum state” i.e. with a limited number of functions.

Furthermore, the legitimisation of power was completely different with respect to the absolute state given the fact that it was based on popular or national sovereignty as opposed to a legitimacy based on the divine birthrights of the Monarch. As a result, the liberal state was founded upon representative government and the principle of separation of powers. However, although the concept of liberal state enshrined representative government it was characterised a mono-class society because suffrage was determined by census or by wealth and therefore large sectors of the population did not have voting rights (including women) and the representatives in Parliament all came from the better-off classes. This proved to be one of the factors that brought about the crisis of the liberal state. In many cases this crisis led to the creation of the democratic pluralistic state, but there were also some significant alternatives.

#### 2.4. *The Democratic Pluralistic State*

The democratic pluralistic state is the result of the slow transformation of the liberal state from a mono to multi-class society. In other words the state is based on the recognition and protection of a plurality of groups, interests, ideas and values that are allowed to coexist in society and are represented in Parliament. This means that from a historical standpoint one of the fundamental elements of this transformation was the extension of voting rights, which of course culminated with the introduction of universal suffrage.

There are three distinguishing features that need to be highlighted: 1) the creation of mass parties, which see the involvement of millions of voters; 2)

elected bodies as the place of discussion and confrontation of diverging interest groups; 3) the recognition not only of liberal first generation rights, but also second generation social and economic rights.

Once again it should be underlined that historically the passage from the liberal to democratic pluralistic state varied from country to country. In countries such as Italy and Germany this was characterised by the tragic parentheses of Fascism and Nazism, while in Great Britain and the United States the transformation was more gradual.

Finally it is important to note that, especially after World War II, some countries in Europe adopted a particular type of democratic pluralistic state known as the welfare state. A typical example is Britain where, notwithstanding the fact that the Prime Minister in office was the wartime hero Winston Churchill, the Labour Party led by Clement Attlee won a landslide victory in the 1945 General Election with a political manifesto based on proposals made by the economist and social reformer William Beveridge and contained in the Social Insurance and Allied Services Report published in 1942. One of the guiding principles of that report was that policies of social security « must be achieved by co-operation between the State and the individual », with the state securing the service and contributions. The state would accompany its citizens from the “cradle to grave” a motto that clearly illustrated the degree of intervention on the part of the State. One of the symbols of the post-war welfare state was of course Britain’s National Health Service (NHS), introduced by the then Health Minister, Aneurin Bevan.

With the exception of the Scandinavian countries, many of the post-war welfare states of Western Europe then evolved into what we can define more precisely as liberal democratic states in which privatisation rather than nationalisation is the key word – especially in the context of a market-oriented European Union that most of these countries now belong to – and where the guiding principle is subsidiarity.

## *2.5. Alternatives to the democratic pluralistic state*

The crisis of the liberal state did not always result in the creation of a democratic pluralistic state. Some countries evolved into totalitarian or authoritarian states, while others – especially after the World War II – transformed into socialist states.

### *2.5.1. Totalitarian and Authoritarian States*

As a premise it should be underlined that there is disagreement even among Italian scholars with regard to how totalitarian and authoritarian states should be defined. Some commentators deny that there is a substantial difference between the two, while others disagree on how certain historical experiences should be classified. For reasons of brevity we will not address this debate herein, but simply underline the fact that both totalitarian and authoritarian states share total absence of checks and balances with regard to the



command structure of the state, executive domination of the bureaucracy and the military, widespread use of force and intimidating action and significant limitations of basic individual rights. According to some commentators, a distinguishing feature between totalitarian and authoritarian states can be found in the role of the political parties. While in totalitarian states there is a strong, one-party system that is ideologically-based, in authoritarian states the party system is extremely weak. As a result, a totalitarian state has an official ideology, while an authoritarian state is driven by the lust for power of the individual leader.

What should be underlined is that in Europe, the totalitarian and authoritarian states were a reaction towards the crisis of the liberal state and an attempt to solve the social conflict caused by the struggle between the bourgeoisie and the working class. The solution in this case was to suffocate political pluralism and concentrate power in the hands of specific institutions: just think of the Grand Council of Fascism in Italy. In fact, an example of a totalitarian state (though some authors considered it to be an authoritarian state) was Fascist Italy between 1922 and 1943. The fascists blamed the liberal state for being unable to defend national interests due to the fragmentation of the political system. As a result the fascist state concentrated power in the hands of the Head of the Government, who exercised both executive and legislative powers. The National Fascist Party was an integral part of the State. In one aspect, the state was undoubtedly totalitarian due to the fact that the people were an integral part of the State and therefore the latter could interfere with all aspects of one's social and private life even through the suppression of many of the individual rights that had characterised the liberal state.

Another example of a totalitarian state was of course Nazi Germany under the rule of Adolf Hitler (1933-1945), while the regimes of Franco in Spain (1936-1975) and Salazar in Portugal (1926-1974) are probably better defined as authoritarian rather totalitarian, but again this is a matter of debate.

#### *2.5.2. The Socialist State*

Another alternative to the democratic pluralistic state was of course the socialist state, established first in Russia and then the Soviet Union after the October Revolution in 1917. The theories at the basis of the socialist state were of course those of Marx and Lenin. With adaptations, this model spread to various parts of the world and in particular Eastern Europe, which in fact became part of the so-called Soviet bloc after World War II.

In brief the origins of this form of state are to be found in the so-called Proletarian Dictatorship, which had the aim of eliminating the bourgeoisie and creating a society without classes and social conflict. The constitutional model was thus based on the abolition of private property and the monopoly of the state with regard to the means of production. A significant difference with respect to the democratic pluralistic state was the fact that the socialist state aimed to abolish the market economy in favour of a collectivist economy.



Originally the Proletarian Dictatorship was supposed to be transitional, but soon after the revolution it was evident that a state structure had to be maintained alongside the party. The main reason for this was the external threat of the “bourgeoisie states”. The socialist state was thus characterised by strong central government as clearly emerged with the Stalinist Constitution of 1936. Then the XXII Congress of the Communist Party of the Soviet Union in 1961, declared that the dictatorship of the proletariat had been succeeded by the “state of all the people”, subsequently incorporated in the Soviet Constitution of 1977.

Although variants of this model can still be found in Cuba and some Asian countries such as China, North Korea and Laos the socialist republics in Europe dissolved after the fall of the Berlin Wall in 1989 and nearly all the countries in Central and Eastern Europe have now moved towards a market economy and ten of them have since joined the European Union.

### 3. Unitary, Federal and Regional States

Using the synchronic rather than the diachronic method, another way of classifying forms of state is on the basis of territorial organisation i.e. the extent to which there is separation of powers between the central government (central state, federal government) and what we will collectively call “sub-state entities” (i.e. the “*regioni*” in Italy, the “*Länder*” in Germany, the “*comunidades autónomas*” in Spain, the “cantons” in Switzerland, the “provinces” in Canada, the “states” in the United States of America and so forth). The sub-state institutional structures differ quite significantly from country to country and in recent years the forms of decentralised or devolved state have become quite variegated, thus any attempt to carry out a classification runs the risk of being too detailed or oversimplified. Some authors have identified four broad categories: unitary states (France), fully federal states (Germany), regionalised unitary states (Spain) and devolving unitary states (United Kingdom). Others talk of unitary decentralised states (Denmark) and federal states (United States, Germany). There are authors who distinguish between dual federalism (United States) and cooperative federalism (Germany) or between decentralised federalism (Switzerland) and unitary federalism (Germany) and we could go on.

Running the risk of oversimplification, in this paragraph we will briefly distinguish between unitary and decentralised states and then in the context of the latter between federal and regional states.

Before we start it should be noted, that Italy – in particular after the reform of Title V, Part II of the Italian Constitution – is actually a country that is difficult to classify in terms of its sub-state institutional structure and the relationship between the State and the Regions.

The difference between unitary and decentralised states is quite straightforward. In a unitary state legislative power is exercised solely by the central government. This does not imply that in unitary states there is no form of local

government, but what it is does signify is that there are no sub-state bodies that can legislate. For example, the Republic of France is a unitary state in which the central government in Paris has total authority over the sub-state entities, known as departments, which are subordinate administrative components of the state (in recent years there has been a heated debate in France with regard to devolution and France's sub-state institutional structure may undergo significant changes in the coming years). On the contrary in decentralised states legislative power is exercised by both the central government and the sub-state entities. From a certain standpoint, decentralisation represents a vertical separation of powers between the state and the territorial bodies.

In the context of decentralised states we can then distinguish between federal and regional states on the basis of four elements 1) extent of the legislative power exercised by the sub-state entities; 2) existence of a separate branch of the judiciary at sub-state level; 3) presence of a second chamber of parliament that represents the sub-state entities; 4) involvement of sub-state entities in constitutional amendment. Alongside these four distinguishing features we may also take into consideration other factors such as the existence of sub-national constitutions and provisions concerning financial and fiscal autonomy.

### *3.1. Allocation of Legislative Power*

Let us analyse the first distinguishing feature: with some notable exceptions a state will be defined as federal if the Constitution contains a provision or clause listing the subject-matters on which the central government can legislate, thus leaving the so-called "residual" subject-matters (i.e. the ones that are *not* listed in the Constitution) to the sub-state entities. On the contrary we will have a regional state if the Constitution contains a list of the subject matters over which the sub-state entities can exercise legislative power, thereby giving competence to the central government with regard to all the other subject matters. One should stress the fact that some Constitutions (such as that of Italy, see Art. 117.3 It. Const.) also contain a list of so-called "concurrent subject matters" i.e. subject matters over which both the central government and the sub-state entities can exercise legislative power. In other words the state will approve a framework law containing a series of guiding principles which the sub-state entities have to follow when they approve a detailed law on that subject-matter.

In any case, there are two countries in particular that represent an exception to this rule on the allocation of legislative power between the central government and the sub-state entities and they are Canada and indeed Italy. Canada, which is undoubtedly a federal state, allocates the residual subject matters to the federal government and not to the provinces. In fact Art. 91 of the Constitution Act 1867 states that «...the exclusive Legislative Authority of the Parliament of Canada extends to all matters coming within the classes of subjects next hereinafter enumerated; that is to say... such classes of subjects

as are expressly excepted in the enumeration of the classes of subjects by this Act assigned exclusively to the Legislatures of the Provinces ». On the contrary, Art. 117.4 of the Italian Constitution provides that « the Regions shall have sole legislative power with respect to any matters not expressly reserved to State law ». Despite these exceptions to the rule there is no doubt that Canada has a federal system, while Italy has a highly devolved regional system.

### 3.2. *Allocation of Judicial Power*

The second element that can be taken into consideration in order to distinguish between federal and regional states is the structure of the judiciary and the legal system as a whole. In fact, in federal systems the sub-state entities often have a separate court system and their own substantive and procedural law, be it civil or criminal. In many respects this element may also be taken in order to measure the “degrees of federalism” that exist in a federal state. In actual fact, within the context of federal states one can distinguish between the “separated model” and the “integrated model”. For example in the United States each state has its own criminal and civil codes; this means that state judges in Los Angeles deciding a case of murder will refer to Sections 187-199 of the California Penal Code while a judge in Dallas will have to apply Section 19.02 of the Texas Penal Code. This is what we could term as the “separated model”. In Canada, on the contrary, only the federal government can pass criminal legislation, thus there is no such thing as the “New Brunswick Criminal Code”, but only the “Criminal Code of Canada”, however, the provinces can decide how they are going to enforce the criminal code and the provinces appoint their own provincial judges, crown attorneys and so on. This is what would be termed as an “integrated model”.

It is interesting to observe that Art. 125 It. Const. states that « First Instance Administrative Tribunals shall be set up in each Region. Sections of these Tribunals may be located elsewhere with respect to the Capital City of the Region ». This provision comes under Title V, Part II of the Constitution, which deals with the « Regions, Provinces, Municipalities ». Does this mean that Italy has a regional administrative judiciary system? The answer is negative. The *Tribunali amministrativi regionali* (TAR) are nothing more than first instance administrative courts, with the State Council in Rome as the only court of appeal. Administrative procedural law is the same throughout Italy.

### 3.3. *Representation in the Upper House*

The third element that we can refer to in distinguishing between federal and regional states is related to the representation of the sub-state entities in the second chamber of Parliament. A country will have a regional system if the second chamber does not represent the sub-state entities. This is one of the reasons why, despite the considerable autonomy that the Italian Regions enjoy, Italy is considered a regional and not federal state. In fact, one should not be

drawn into error by Art. 57 It. Const., which states that « the Senate of the Republic shall be elected on a regional basis... », because Art. 67 then goes on to clarify that « each Member of Parliament represents the Nation... », therefore the provision contained in Art. 57 merely indicates the procedure to be followed in order to elect the Senate, but its members represent the Nation not the Region they are elected in. On the contrary, in federal states the second chamber represents the sub-state entities. In truth the way the sub-state entities are represented in the second chamber may differ. For example, the United States adopts “strict states” or “equal” representation. In other words, all the states have identical representation regardless of their size and population. In fact, there are fifty states and each one has two senators elected directly by the people. This means Rhode Island and California are on a par in terms of representation in the US Senate. On the contrary other federal states not only choose the members with alternative mechanisms, but they often have a “weighted” representation according to the size and population. For example the members of the German *Bundesrat* are not elected directly, but are members of the *Länder* executives, which appoint them and may remove them at any time. Moreover, each *Land* has a weighted representation. Baden-Württemberg with a population of over 7 million has six members while Saarland with a population of less than 2 million has three representatives. In Austria the members of the Upper House are elected by the legislative bodies of the nine *Länder* and, again, there is weighted and not equal representation.

#### 3.4. *Constitutional Amendment Powers*

The fourth element, considered by many as determinant in distinguishing between federal and regional states, concerns the participation of sub-state entities in constitutional amendment. In fact, in regional states the sub-state entities do not take part in constitutional reform procedures, while the member states in federal countries do have constituent power and take part in amending the Constitution. Again, at first sight one might be drawn into error by the Italian Constitution given the fact that, with regard to constitutional amendment laws, Art. 138 It. Const. states that « such laws shall be submitted to popular referendum when, within three months of their publication, a request is made by one fifth of the members of either Chamber or by 500,000 electors or by *five regional Councils* ». This provision clearly indicates the fact that the Regions in Italy can ask for a referendum to be held to decide whether an amendment to the Constitution is to be approved or not. But does this really mean that the Regions have the power to amend the Constitution? The answer can be found in Art. 138 It. Const. itself. First of all, the final paragraph states that « no referendum may be held if the law has been approved by each Chamber, in the second vote, with a majority of two thirds of its members », in other words the Regions can only call for a referendum if the amendment has been approved in the second reading with an absolute majority, but not a majority of 2/3s. Second, is holding a referendum to approve or disapprove a

proposal that was debated and voted in Parliament without the involvement of the Regions enough to consider the Regions as one of the subjects that has the power to amend the Constitution? The answer is clearly negative, because the Regions are confronted with a take-it-or-leave-it situation and have no way of modifying the proposal by presenting their own amendments.

On the contrary in federal systems the member states have a central role in amending the Constitution. This is the case in the United States of America where the amendments to the Constitution have to be ratified by 3/4 of the Legislatures or Conventions of the States. Art. 79.2 of the German Basic Law states that a law amending the latter «...requires the affirmative vote of two thirds of the members of the *Bundestag* and two-thirds of the votes of the *Bundesrat*». In this case the participation of the *Länder* in the amendment procedure is ensured by the fact that the *Bundesrat*, the upper house where they are represented has to approve the changes. It is interesting to note that there is an absolute limit to constitutional amendment in Germany contained in Art. 79.3 which states that «an amendment of this Basic Law affecting the division of the Federation into *Länder*, the participation in principle of the *Länder* in legislation, or the basic principles laid down in Articles 1 and 20, is inadmissible». An interesting comparison can be made with Italy where according to Art. 139 It. Const., «the Republican form of the State may not be changed by way of constitutional amendment».

### 3.5. *Statutes of Autonomy or Constitutions?*

Another element could be taken into consideration in distinguishing between federal and regional states and that is the existence of sub-national constitutions. In other words some commentators argue that if the member states have their own Constitution then we are in the presence of a federal state; if this is not the case then the form of state is regional. This theory is undoubtedly well founded, but in many cases the fact that the member states of a federal system have their own Constitution is due to what the German jurist Carl Friedrich defined as a “federalising process”, the classic example being the United States, which went from the Confederation of 1776 to the Federation introduced with the Constitution of 1787. The evolution of this country’s form of state was dynamic and progressive in nature and of course before the creation of the Federation all the states of the Confederation had their own Constitution, which they kept. In any case it should be underlined that in the United States the state constitutions are subordinate to the US Constitution and the laws of the United States (i.e. federal law) but they take precedence over state law. From a certain standpoint this might also appear to be a problem of *nomen iuris*. In fact, given their position in the system of legal sources is there really substantial difference between the State Constitutions in the United States and the Statutes of Autonomy of the Italian Regions? If the regional statutes were renamed “constitutions” this would not in itself transform Italy into a federal state.

### 3.6. *No Decentralisation without Taxation?*

Finally, there is an element which is important for both federal and regional states that we should not ignore i.e. the financial arrangements that exist between the central government and the sub-state entities. On one hand if the sub-state entities are deprived of financial resources then of course it means that the autonomy they have is merely on paper, but in practice they are prevented from exercising their powers. If the sub-state entities do have financial resources made available then we should ask ourselves a series of questions. For example which level has to pay for the exercise of specific functions by the sub-state entities? Which level disposes of which sources of income? Are there any transfers or grants from the central government level to the sub-state entities? Is there a control of sub-state government borrowing?

The fiscal powers and financial resources of the Italian regions are dealt with in detail in a specific chapter of this textbook, therefore it suffices to underline that in deciding the way tax-raising powers and financial resources should be shared between the central government the following aims must be pursued: efficient allocation of resources, equity, stabilisation, economic growth, regional balance, national integrity and political stability.

## 4. **Forms of Government: a Synchronic Analysis**

In par. 2 we looked at the historical developments of the form of government with particular reference to the absolute monarchy and the constitutional monarchy. Let us now turn to the different forms of government that exist today, bearing in mind that it makes sense to classify forms of government if one is in the context of a democratic pluralistic state, given that in an authoritarian or totalitarian state there is no real separation of powers and a system of checks and balances (see par. 2.4.1.).

One needs to be careful when classifying forms of government because as Robert Elgie, Lecturer of Politics at the University of Limerick, observes «most writers arrive at their preferred classification of regime types by conflating two distinct types of properties... in order to avoid the charge of conceptual ambiguities it is necessary to classify regimes on the basis of one type of property or the other but not both ». From a strictly legal perspective, in fact, the study of forms of government should be carried out by referring solely to legal elements, i.e. one should simply examine the formal legal rules concerning legitimisation, relationship between institutional bodies, existence of a separation of powers and so forth. From a politological perspective, on the contrary, the aim is not to examine the realm of what should be (*sollen*), but the realm of what is (*sein*), regardless of the constitutional and statutory provisions in force. Of course, a jurist that merely describes the “law in the books” but not the “law in practice” will render a poor service to his readers, but one has to concur with Elgie when he asserts that in any case «it is better to classify regime types on the basis of their dispositional properties rather



than their relational properties ». But what are the dispositional properties? According to Elgie there are three: first, whether there is both a head of state and a head of government or whether just one institution is to be found; second whether or not the incumbents of these institutions are popularly elected; third whether or not the incumbents serve for a fixed term.

#### 4.1. *Parliamentary Executive*

The origins of the parliamentary form of government are to be found in Great Britain although the Office of the Prime Minister and the Cabinet has evolved as a matter of political expediency and constitutional practice rather than by law given that the country does not have a codified constitution. While Robert Walpole is regarded as having been the first Prime Minister (although he did not recognise the title) the resignation of Lord North – the Prime Minister who lost America – in 1782 is considered an important moment in the evolution from a constitutional to parliamentary monarchy. Up until that moment the King had the power to appoint and to dismiss the Prime Minister and the rest of the Cabinet. On the contrary in 1782 having accepted the resignation of Lord North King George III realised he had no choice but to appoint a Prime Minister he knew would have the majority in Parliament, i.e. Charles Watson-Wentworth, the Marquess of Rockingham who was the leader of the largest group in Parliament, the Whigs, and who had already been Prime Minister in 1765. Although Rockingham died suddenly and therefore remained in office for only fourteen weeks this was the first time the majority in Parliament managed to emancipate itself from the Monarch. Another crucial event occurred in 1832 soon after the approval of the Reform Act when the struggle between Parliament and the Monarch came to head. In 1834 King William IV, who was opposed to the reforms that were being introduced by the Whig majority in Parliament, decided to dismiss the then Prime Minister Lord Melbourne and replace him with the Tory Robert Peel. Peel was however unable to obtain a majority in Parliament in the subsequent elections of 1835 and the King was forced to reappoint Lord Melbourne: this will be the last time a Monarch will dismiss a Prime Minister of his own accord. In other words, *de facto* the King lost what remained of his executive powers and the Prime Minister and the Cabinet became an autonomous body.

Again the way the parliamentary executive came into being in other countries, such as France, Germany and Italy, was of course different to that of Great Britain given the fact that the latter does not have a codified constitution and that most of the rules concerning the Prime Minister, the Cabinet and Parliament are contained in constitutional conventions and not acts of Parliament. However, it is true to say that the salient features of the British parliamentary system can be found in other parliamentary executives.

First of all the quintessential element of the parliamentary form of government is the relationship of confidence between the Executive (i.e. the Prime Minister and the Cabinet) and Parliament. Furthermore, bearing in



mind the dispositional properties indicated above, this form of government has both a Head of State and a Head of Government.

Second, in a parliamentary monarchy such as Great Britain or Spain, the Head of State will be determined on a hereditary basis, while in parliamentary republics the president is elected by Parliament: in either case the incumbent is not popularly elected. With regard to the Head of Government, strictly speaking he is not elected directly, however many commentators argue that in so-called majoritarian parliamentary forms of government where the Executive has a stable parliamentary majority prevail *de facto* the Head of Government is popularly elected. This of course will depend on the electoral law and the political system that exist in a given country. If we have a plurality/majority system or proportional representation with a premium of seats (as is the case in Italy following the approval of a new electoral law in 2005) that ensures a healthy majority and two main parties or coalitions then the election of the Head of Government is going to be very similar to a popular election because in practice the Head of State will have no choice but to appoint the leader of the winning party/coalition no matter what the Constitution establishes (see Art. 92.2 It. Const., Art. 99.1 Spanish Const.). As a matter of interest, one should bear in mind that in Great Britain, on the contrary, a constitutional convention establishes that after an election the leader of the largest party will be invited by the Queen to form a government and become Prime Minister. In all these cases we have a popular election *senso latu* of the Head of Government. If, on the other hand, one has proportional representation without a premium in seats together with a multi-party political system then the appointment of the Head of Government will depend on the number of members of parliament obtained by each party/coalition: Belgium and Holland being two good examples from this point of view.

With regard to the third dispositional property, the term of office of the Head of State is of course for life if we are in the context of a parliamentary monarchy or it will be for a fixed term if we are in the presence of a parliamentary republic (Italy's President remains in office for seven years, the German *Bundespräsident* for five). On the contrary, the Head of Government does not have a fixed term. If the Government has a strong majority then it is highly likely that the Head of Government will remain in office for the entire duration of the legislature, however, it is possible to change the Head of Government without this automatically provoking the dissolution of Parliament. This occurred in 2016 after the Brexit referendum (see Chapter 2 when the Conservative Party replaced David Cameron with Theresa, but it may also occur in Germany, one of the most stable parliamentary democracies in the world (with just eight Chancellors since 1949), by using an instrument known as the "constructive vote of no confidence". While in most parliamentary democracies a motion of no confidence approved by Parliament against the Government would trigger the resignation of the Executive (this is the case in Italy, see Art. 94.5 It. Const.), in Germany it is not quite like that. According to Article 67, German Basic Law « (1) The *Bundestag* can express its lack of confidence in the Federal Chancellor *only by electing a successor* by the

majority of its members and by requesting the Federal President to dismiss the Federal Chancellor. The Federal President must comply with the request and appoint the person elected. (2) Forty-eight hours must elapse between the motion and the election » (italics added). Art. 68 goes on to state that « (1) If a motion of the Federal Chancellor for a vote of no confidence is not assented to by the majority of the members of the *Bundestag*, the Federal President may, upon the proposal of the Federal Chancellor, dissolve the *Bundestag* within twenty-one days. *The right to dissolve lapses as soon as the Bundestag by the majority of its members elects another Federal Chancellor.* (2) Forty-eight hours must elapse between the motion and the vote thereon (italics added). In other words, unless it is the Chancellor himself/herself that asks for and loses a vote of no confidence then the Federal President cannot dissolve the *Bundestag*. In other words if the majority of members of the House have no confidence in the Chancellor in office they must be capable of electing a successor in order to replace the Chancellor in office. This happened in 1982 when the Christian Democrat Helmut Kohl replaced the Social Democrat Helmut Schmidt as chancellor thanks to a change of alliance by the FDP, Germany's Liberal Party. A similar provision is contained in the Spanish Constitution and was used in 2018 when Pedro Sánchez of PSOE replaced Mariano Rajoy of the Spanish People's Party as Prime Minister.

#### 4.2. *Presidential Executive*

The prototype of the presidential form of government is of course the United States and the system introduced with the Constitution of 1787. This regime type has been imitated, in particular, by countries in Central and South America, but also countries in Asia and Africa. Due to the different social and political context, however, the system has often been adapted so as to give the President powers that he would not have in the United States, such as the power of dissolution of Parliament. This has often given rise to extremely unstable governments and moves towards forms of authoritarian presidentialism.

If compared to the parliamentary form of government the dispositional properties of the presidential system are diametrically the opposite.

First, the Head of State and the Head of Government are combined into one institution, the President. Furthermore, the latter is completely separated from the legislature i.e. Congress (composed of the House of Representatives and the Senate). In other words, there is no relationship of confidence between the President and Congress. This does not mean that the two institutions do not interact because, on one hand, the President has the power to veto legislation enacted by Congress while, on the other, Congress has the power to impeach the President. Under Art. II, Sect. 4 of the US Constitution, Congress has the power to impeach the President for « treason, bribery or other high crimes and misdemeanours ». The House of Representatives acts as the prosecutor and must initiate any impeachment proceedings, while the Senate is the jury, and must take a two-thirds vote to remove a President (unlike other

countries the US Supreme Court does not take part in the impeachment procedure). It is interesting to note that Alexander Hamilton – one of the United States founding fathers – in No. 65 of the Federalist Papers underlines that impeachment is based on English parliamentary practice. Many historians believe that impeachment (i.e. a judicial instrument) in England actually developed into the present day vote of no confidence (i.e. a political instrument).

Second, the President is popularly elected. It is important to underline that when referring to the United States one has to use the expression “popularly elected” coined by the Dutch political scientist Arend Lijphart and not “directly elected” because strictly speaking when US citizens vote in the presidential elections on the second Tuesday in November every four years they actually vote for the presidential electors who then meet in January to elect the President. It is an indirect, but popular election because if a presidential candidate obtains the majority in the electoral college then it is a foregone conclusion that he will be elected President given the fact that although in most states the presidential electors are not obliged by law to vote for the candidate of their party, it is very rare that they do otherwise. However, a demonstration of the fact that this is *not* a direct election Art. II, Sect. 2 US Const. states that if no presidential candidate has the absolute majority then it will be the House of Representatives that will choose the President.

Third, the President serves for a fixed term of four years and can be re-elected once. As indicated above, Congress can only impeach the President, but it cannot vote a motion of no confidence in order for him to resign. The last President to end his term early was Richard Nixon in 1972 who resigned following the famous Watergate scandal and the initiation of an impeachment procedure, while John F. Kennedy’s promising presidency was abruptly brought to an end when he was assassinated in Dallas in 1963.

#### 4.3. *Directorial Executive*

This form of government is present in only one country in the world, Switzerland, although some commentators argue that a directorial executive also existed in Uruguay between 1951 and 1966 because, as is the case in the Swiss system, there was a collegial Head of State, whereas others disagree because the ministers were responsible towards Parliament and furthermore Uruguay at the time was a democracy in transition.

Given that this Executive is an *unicum* in the context of comparative law let us look very briefly at its characteristics again using the dispositional properties indicated in par. 4 to distinguish it from the other forms of government that we have examined so far.

Switzerland’s form of government is based on the one provided for in the French Constitution established during the Thermidorian Reaction in the French Revolution. Known as the Constitution of Year III in the French Republican calendar, it was prepared by the Thermidorian Convention. The Constitution of 1795 established a bicameral legislature and a five-man

Directory. This model was brought to Switzerland by the French Army in 1798 when the Helvetic Republic was created. While unsuccessful in France, this form of government proved to be perfectly functional in Switzerland and, as a result, it was confirmed in the Constitutions of 1848 and 1874 and was maintained even in the present Swiss Constitution approved in 1999. It has to be said that this system can only be fully understood if one takes into account the peculiar characteristics of the country. It is common knowledge that Switzerland comprises a plurality of ethnic, linguistic and religious communities that have a centuries old tradition of autonomy at cantonal level. Switzerland is therefore a nation not in an ethnic, but political sense. The various communities favoured the creation of a collegial institution that like the presidential system combines both the Head of State and the Head of Government. The difference between the presidential system and the directorial system being that the President of the United States is monocratic, while the Federal Council (*Conseil fédéral, Bundesrat, Consiglio federale*) is collegial.

The Federal Council, composed of seven members, is not elected directly but by the Federal Parliament (i.e. the House of Representatives and the Senate), however there is no relationship of confidence between the Council and the Parliament. In fact, the Council has a fixed term of four years (again a similarity with the presidential system and a difference with the parliamentary system). The Council is chaired by the President of the Confederation who is elected among the seven members and remains in office for one year. More precisely, according to Art. 175 Swiss Const. « The Federal Parliament shall elect, for a term of one year, one of the members of the Federal Council as President of the Confederation, and another as Vice-President of the Federal Government. These mandates may not be renewed for the following year. The President of the Confederation shall not be eligible to be Vice-President for the following year ». One should emphasise that regardless of the existence of a President each member of the Council is of equal rank and holds a cabinet portfolio assigned by common agreement with his or her colleagues. Since 1959, the Swiss have used a so-called “magic formula” according to which two members of the Council come from each of the three large, centrist parties: the Social Democrats (SP), the Free Democrats (FDP) and the Christian Democrats and one seat from the rightist People’s Party (SVP), thus creating a unique system of government by consensus. This “magic formula” changed in 2003, when the SVP obtained more votes than the Free Democrats (FDP) and Social Democrats (SP) to become the country’s largest party and was given a second seat, at the expense of the waning Christian Democrats. The “magic formula” came under threat again in the October 2007 elections when, once again, the right-wing People’s Party (SVP) won the parliamentary elections and its fiery leader Christoph Blocher, Justice Minister in the outgoing Federal Council, demanded to be re-elected. This failed because the other three parties joined forces and elected another more moderate member, Eveline Widmer-Schlumpf, to the Federal Council.

#### 4.4. *Semi-presidential Executive*

On the 8th January 1959 just seven months after the approval of the Constitution of the French Fifth Republic, an article appeared in *Le Monde* written by its founder Hubert Beuve-Méry. The title was *De la dictature temporaire au régime semi-présidentiel*: for the first time the term “semi-presidential” was used to describe the Executive that was introduced in France in 1958 – a term that was then be adopted by the great French jurist Maurice Duverger – which combines elements of both the presidential and the parliamentary forms of government. Although the French Fifth Republic is considered the prototype of the semi-presidential system, this form of government was actually adopted for the first time in the Weimar Constitution of 1919 (according to some one of the causes of the rise of Nazi-socialism) and exists in Finland (1919), Austria (1929), Ireland (1937) and Iceland (1944).

In France the semi-presidential form of government was adopted following the institutional and political crisis of the Fourth Republic caused by weak and unstable Governments, on one hand, and the War in Algeria, on the other. Undoubtedly the then President of the Republic, Charles de Gaulle, played an important role in bringing about the approval of the new Constitution and was even more decisive in introducing the direct election of the President of the Republic in 1962 with a presidential referendum, which many, however, considered to be a breach of the 1958 Constitution.

Once again the three dispositional properties can be used to illustrate the salient features of this form of government and the differences with respect to the other systems examined in the previous paragraphs.

First of all, unlike the presidential and directorial systems, in the semi-presidential form of government there is both a Head of State and a Head of Government, although it should be noted that according to Art. 9 French Const. « The President of the Republic shall preside over the Council of Ministers » therefore, from a certain standpoint, he also exercises executive powers. This is why some commentators define it as being a “bicephalous” executive system.

Second, the President of the Republic is elected directly (since 1962). Here, unlike the United States, the President is not just “popularly elected”, but more precisely “directly elected” on the basis of a two-round voting system. If no presidential candidate obtains the overall majority in the first round there will be a run-off election two weeks later between the two candidates that obtained the highest number of votes. The Head of the Government on the contrary is appointed by the President of the Republic, but as in a parliamentary executive he (and the Council of Ministers) must have the confidence of the majority of members of the National Assembly, the French lower house. The election of the President of the Republic and the National Assembly do not take place at the same time; therefore one may have “cohabitation” i.e. a President of one party and a parliamentary majority of another. In this case the system will work more like a parliamentary rather than presidential system given the fact that the President will be forced to

appoint as Prime Minister someone that has the support of the majority in the National Assembly. In order to minimise the risk of situations of cohabitation, in 2000, the term of the President of the Republic was reduced from seven to five years (the same fixed term as the National Assembly). As a result the last two Presidential and parliamentary elections took place in a close space (leading some to talk of a “four-round” election) and ensured that the majority in National Assembly corresponded to party of the President. Furthermore, in July 2008 a series of other amendments were made to the French Constitution including the introduction of a two mandate limit to the term of office of the President of Republic.

Finally it should be noted that as in a parliamentary system, according to Art. 12 French Const. « the President of the Republic may, after consulting the Prime Minister and the Presidents of the assemblies, declare the National Assembly dissolved », however the President cannot exercise this power of dissolution in the year following the election. It should also be underlined that the President should exercise this power with prudence. In 1997 the then President Jacques Chirac decided to dissolve the National Assembly and hold early elections with the aim of strengthening the centre-right majority, but to his misfortune the move backfired and the socialists won giving rise to the longest period of cohabitation in French history (1997-2002).

Very briefly, one can actually sub-classify semi-presidential systems into three categories: first, semi-presidential systems where the Prime Minister prevails (this is the case of Austria and Ireland where although the President of the Republic is elected directly the Executive is *de facto* parliamentary); second, semi-presidential systems which are based on a diarchy or clear separation of competences between the Prime Minister and his government, on one hand, and the President of the Republic, on the other; this is the case of Finland and Portugal (although recent constitutional amendments to the Lusitanian Constitution have moved the latter closer to the systems adopted in Austria and Ireland); finally there are semi-presidential systems where the President plays a central role and this is the case of France (when of course there is no cohabitation).

Finally, an interesting case is represented by Bulgaria: according to Art. 1.1. Bulgarian Const., « shall be a republic with a parliamentary form of government », but then Art. 93.1 goes on to state that « the President shall be elected directly by voters for a period of five years by a procedure established by law ». Many comparative scholars argue this is a classic example of the paradoxes that may emerge from so-called “constitutional self-qualifications”, while others – mainly political scientists – point out that regardless of the theoretical-legal definition one can give of a certain form of government, in practice Bulgaria works like a parliamentary and not a semi-presidential system and therefore the fact that the President is elected directly is unimportant.